pressly or by implication granted by the State. *Spaulding* v. *Peabody*, 153 Massachusetts, 129; Opinion of Justices, 150 Massachusetts, 592; *Swift* v. *Falmouth*, 167 Massachusetts, 115; *Bangs* v. *Snow*, 1 Massachusetts, 180, 189.

Without express legislative authority a town cannot appropriate money for defense against an invading enemy, *Stetson* v. *Kempton*, 13 Massachusetts, 272, 279; nor to build a county highway, *Parsons* v. *Goshen*, 11 Pick. 396; nor to celebrate Cornwallis's surrender, *Tash* v. *Adams*, 10 Cush. 252; nor to purchase company uniforms, *Claflin* v. *Hopkinton*, 4 Gray, 502; nor to celebrate the Fourth of July, *Hood* v. *Lynn*, 1 Allen, 103; *Gerry* v. *Stoneham*, 1 Allen, 319; *Morrison* v. *Lawrence*, 98 Massachusetts, 219; nor to pay expenses incurred in promoting or opposing the annexation of one municipality to another. *Minot* v. *West Roxbury*, 112 Massachusetts, 1; *Coolidge* v. *Brookline*, 114 Massachusetts, 592.

The powers of a municipality are only such as they can be clearly shown to possess. *Minturn* v. *Lane*, 23 How. 435; *Detroit* v. *Citizens' Street Ry. Co.*, 184 U. S. 368, 388. Every reasonable doubt is against the power. This doctrine is vital to the public welfare. *Pearsall* v. *Great Northern Railway Co.*, 161 U. S. 646, 664; *Fertilizing Co.* v. *Hyde Park*, 97 U. S. 659, 666; *Citizens' Street Ry. Co.* v. *Detroit Ry. Co.*, 171 U. S. 48, 54.

Assuming that the board of aldermen impose the conditions in form and manner as they attempted to do, nevertheless they represented said city in its corporate capacity as a mere governmental agency, and not in its private corporate capacity, so that, if said city became the obligee in any contract to which the railway company was obligor, the rights of said city thereunder were held not as its private property, but in trust as a governmental agency for the public in general, and were, therefore, subject at all times to the control of the legislature. Cities have almost no private property. *South Dakota* v. *North Carolina*, 192 U. S. 286; 2 Dillon Mun. Corp., 656, 683; *Brimmer* v. *Boston*, 102 Massachusetts, 19; *Agawan* v. *Hampden County*, 130 Massachusetts, 528, and cases cited on p. 530;